



CHAPTER 29.

An Act to amend Part III of the Local Government (Scotland) Act, 1929, and to repeal, so far as relating to Scotland, section forty-five of the Unemployment Assistance Act, 1934. A.D. 1937.
[6th May 1937.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The amount of the General Exchequer Contribution to be paid under section fifty-three of the Local Government (Scotland) Act, 1929 (hereinafter referred to as "the principal Act"), in respect of each year in the third fixed grant period shall be the sum of six million eight hundred and twenty-seven thousand pounds, and in respect of each year of every following fixed grant period such amount as Parliament may hereafter determine with respect to the fixed grant period, so, however, that the General Exchequer Contribution for the fourth or any subsequent fixed grant period, exclusive of any increase made therein in pursuance of any Act relating to maternity services, shall be of an amount bearing to the total amount of rate and grant borne expenditure in the penultimate year of the preceding fixed grant period a proportion not less than twenty-four and six-tenths per cent.

Amount of
General
Exchequer
Contribu-
tions in
respect of
third and
subsequent
fixed grant
periods.
19 & 20
Geo. 5. c. 25.

A.D. 1937.

(2) In this section—

(a) the expression “rate and grant borne expenditure” means the local expenditure which fell to be borne by rates and by grants made under Part III of the principal Act out of the General Exchequer Contribution; and

(b) if as respects any fixed grant period the Secretary of State certifies that the amount of rate and grant borne expenditure in the penultimate year of that fixed grant period was abnormally increased by reason of any emergency involving the issue of a proclamation under the Emergency Powers Act, 1920, there shall be deemed to be substituted for the reference to the penultimate year of the preceding fixed grant period a reference to the last year preceding the said penultimate year in which no such abnormal expenditure was incurred.

10 & 11
Geo. 5. c. 55.

24 & 25
Geo. 5. c. 29. (3) Section forty-five of the Unemployment Assistance Act, 1934 (which provides for contributions being made by local authorities to the Unemployment Assistance Fund) shall, in so far as it relates to Scotland, be deemed to have ceased to have effect on the first day of April nineteen hundred and thirty-seven.

Amendment
of rules for
determining
weighted
population.

2. The principal Act shall have effect as if for the provisions contained in Part III of the Seventh Schedule to that Act (which contains rules for determining weighted population) there were substituted the provisions set out in the First Schedule to this Act.

Amendment
as to reduc-
tion in
Additional
Exchequer
Grants.

3. In determining in accordance with paragraph (b) of subsection (3) of section fifty-seven of the principal Act any reduction to be made in the standard sum required to be ascertained for the purposes of calculating the Additional Exchequer Grants payable to counties and large burghs, the weighted population of the county or large burgh shall be adjusted as follows:—

(a) that for the first fixed grant period shall be determined in accordance with the rules set out in the First Schedule to this Act;

- (b) that for the fixed grant period in question shall be increased by a figure equal to two and a half per cent. of the weighted population for the first fixed grant period determined as aforesaid. A.D. 1937. —

4.—(1) Paragraph (b) of subsection (1) of section fifty-nine of the principal Act (which determines the sums to be allocated by county councils for behoof of landward areas during the first and second fixed grant periods in respect of losses on account of special rates) shall have effect as if for the words "first and second fixed grant periods a sum equal to" there were therein substituted the words "third fixed grant period a sum not less than". Compensation for losses on account of special rates &c. during third fixed grant period.

(2) Paragraph (b) of subsection (2) of section seventy of the principal Act (which authorises payments to authorities other than county or town councils in respect of losses on account of rates levied by those other authorities) shall have effect as if for the words "first and second fixed grant periods of a sum equal to" there were substituted the words "third fixed grant period of a sum not less than".

5.—(1) If, in accordance with regulations made under this section, the council of any county satisfy the Secretary of State that the reduction provided by paragraph (b) of subsection (1) of section sixty of the principal Act in the amounts to be credited under that paragraph to any separately rated area in the county (that is to say, a reduction equal to one-fifteenth of the amount so credited for the year beginning on the sixteenth day of May nineteen hundred and thirty) would occasion special hardship or difficulty, the Secretary of State may with the consent of the Treasury by order direct that during the fixed grant period in respect of which the order is made the said paragraph shall, in its application to that area, have effect as if for the words "one-fifteenth" there were substituted the words "one-thirtieth". Power to modify provisions as to Supplementary Exchequer Grants to counties.

(2) If, in accordance with regulations made under this section, the council of any county satisfy the Secretary of State that, notwithstanding the operation of any order made under the last foregoing subsection with

A.D. 1937. — respect to any separately rated area, the reduction of the amounts to be credited as aforesaid under the said paragraph (b) would occasion special hardship or difficulty, the Secretary of State may, after consultation with the county council, direct that during the remaining years of the fixed grant period in which the direction is given, further sums equal to such reductions shall be set aside under subsection (1) of section fifty-eight of the principal Act out of the county apportionment and shall be applied for behoof of the separately rated area.

(3) Subsection (1) of section sixty of the principal Act shall have effect as if for the words "said sixteenth day of May" where first occurring in paragraph (b) of the said subsection, the words "sixteenth day of May nineteen hundred and thirty" were substituted.

(4) The Secretary of State may, after consultation with such associations of local authorities as appear to him to be concerned and with any local authority with whom consultation appears to him to be desirable, make regulations for the purposes of this section, and any such regulations shall, in particular, prescribe the circumstances in which, and the conditions subject to which, orders may be made under this section.

Investigation of working of rules of Seventh Schedule, Parts III and IV of principal Act.

6.—(1) The Secretary of State shall, in consultation with such associations of local authorities as appear to him to be concerned and with any local authority with whom consultation appears to him to be desirable, cause an investigation to be made into the working—

- (a) of the rules contained in Part III of the Seventh Schedule to the principal Act; and
- (b) of the rules contained in Part IV of that Schedule;

and shall cause a report of the result of any such investigation to be laid before Parliament.

(2) The said investigations may be made at such times as may be directed by the Secretary of State, so, however, that investigations into both the matters aforesaid shall have been made before the expiration of the fourth fixed grant period.

7.—(1) This Act may be cited as the Local Government (Financial Provisions) (Scotland) Act, 1937, and the provisions thereof shall be construed as one with Part III of the principal Act, and this Act and the principal Act may be cited together as the Local Government (Scotland) Acts, 1929 and 1937.

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Short title,
construction,
citation,
repeals and
commence-
ment.

(2) References in this Act to any enactment or any provision of any enactment shall, unless the context otherwise requires, be construed as references to that enactment or provision as amended by any subsequent enactment, including this Act.

(3) The enactments mentioned in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(4) This Act shall come into operation on the sixteenth day of May, nineteen hundred and thirty-seven.

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SCHEDULES.

Sections 2
and 3.

FIRST SCHEDULE.

RULES FOR DETERMINING WEIGHTED POPULATION.

1. The estimated population of the county or large burgh in the appropriate year shall be increased—

- (i) if the estimated number of children under five years of age per thousand of the estimated population exceeds fifty, by the percentage represented by the proportion which that excess bears to fifty;
- (ii) if in the appropriate year the rateable value per head of the estimated population of the county or large burgh is less than twelve pounds ten shillings, by the percentage represented by the proportion which the deficiency bears to twelve pounds ten shillings.

In ascertaining the rateable value of a county or large burgh for the purpose of this paragraph, account shall not be taken of—

- (a) any lands and heritages the occupier of which is exempted from the payment of rates in respect thereof by virtue of a provision contained in a public general Act (other than a provision only empowering the council to grant exemption) and
- (b) such lands and heritages (not being lands and heritages occupied by the council of the county or burgh) as the Secretary of State may by order prescribe, being lands and heritages the occupier of which is exempted from the payment of rates in respect thereof by virtue of any such provision as aforesaid contained in a local Act.

2. There shall be estimated and certified the average numbers during the three calendar years immediately preceding the beginning of each fixed grant period of unemployed insured men and of unemployed insured women resident in each county and large burgh, and there shall be ascertained the percentage (hereafter in this Rule referred to as the "unemployment percentage") represented by the proportion which the number of

unemployed insured men increased by ten per cent. of the number of unemployed insured women, bears to the estimated population of the county or large burgh for the calendar year in which the appropriate year begins, and if as respects any county or large burgh the unemployment percentage exceeds one-and-a-half, the estimated population of the county or large burgh in the appropriate year as increased in accordance with Rule 1 contained in this Part of this Schedule shall be further increased as follows :—

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—
1st SCH.
—cont.

- (i) If the unemployment percentage exceeds one-and-a-half but does not exceed five, by a percentage equal to the amount of the excess over one-and-a-half multiplied by ten; and
- (ii) If the unemployment percentage exceeds five, by a percentage equal to the sum of the two following amounts, that is to say, the excess of the unemployment percentage over one-and-a-half multiplied by ten, and the excess of the unemployment percentage over five multiplied by five.

3. There shall be ascertained and certified the number of miles of road in every county and the estimated population of every such county as increased in accordance with Rules 1 and 2 contained in this Part of this Schedule shall be further increased—

- (a) in the case of a county in which the estimated population per mile of roads is in the appropriate year less than one hundred, by the percentage represented by the proportion which the difference between two hundred and thirty and the estimated population per mile of roads bears to two hundred; and
- (b) in the case of a county in which the estimated population per mile of roads is in the appropriate year one hundred or more, by the percentage represented by the proportion which sixty-five bears to the estimated population per mile of roads.

4. The estimated population of the county or large burgh as increased in accordance with the provisions of the foregoing rules contained in this Part of this Schedule shall be the weighted population of the county or large burgh.

5. For the purposes of this Part of this Schedule the rateable value in the appropriate year for the first fixed grant period shall be the reduced rateable value.

[CH. 29.]

*Local Government
(Financial Provisions) (Scotland)
Act, 1937.*

[1 EDW. 8. &
1 GEO. 6.]

A.D. 1937.

SECOND SCHEDULE.

Section 7.

ENACTMENTS REPEALED.

Session and chapter.	Short title.	Extent of repeal.
19 & 20 Geo. 5. c. 25	The Local Government (Scotland) Act, 1929.	Subsection (3) of section fifty-three; in section fifty-seven, in paragraph (b) of subsection (3) thereof, the words "adjusted" as regards unemployment," and subsection (4) thereof; in subsection (1) of section sixty the words "during the" period of nineteen" years beginning" on the sixteenth" day of May, nineteen hundred and" thirty," and the words "during that period," and in paragraph (b) of the said subsection the word "fourteen".
24 & 25 Geo. 5. c. 29	The Unemployment Assistance Act, 1934.	Section forty-five, so far as relating to Scotland.

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